

21STCV02826 21STCV02826

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-06-26

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TENTATIVE RULING – NO. 1

DEPARTMENT

207

HEARING DATE

June 26, 2026

CASE NUMBER

21STCV02826

MOTIONS

Motion for Protective Order

MOVING PARTY

Plaintiff Heather Vanian

OPPOSING PARTIES

Defendants Jonathan A. Hoenig, M.D. and Jonathan Hoenig,
M.D. Surgery Center, LLC

MOTION

This case arises from allegations of medical malpractice in connection with facial plastic surgery. On January 22, 2021, Plaintiff Heather Vanian ("Plaintiff") filed suit against Defendants Jonathan A. Hoenig, M.D. and Jonathan Hoenig, M.D. Surgery Center, LLC ("Defendants") alleging a single cause of action for medical negligence.

Plaintiff now moves for a protective order to limit the forensic experts designated by Defendants on liability, causation, and damages. Defendants oppose the motion and Plaintiff replies.

ANALYSIS

I.

Protective Order

Code of Civil Procedure section 2034.260 governs expert disclosures, and requires that the designation be accompanied by a declaration containing the following information:

(1) A brief narrative statement of the qualifications of each expert.

(2) A brief narrative statement of the general substance of the testimony that the expert is expected to give.

(3) A representation that the expert has agreed to testify at the trial.

(4) A representation that the expert will be sufficiently familiar with the pending action to submit to a meaningful oral deposition concerning the specific testimony, including an opinion and its basis, that the expert is expected to give at trial.

(5) A statement of the expert's hourly and daily fee for providing deposition testimony and for consulting with the retaining attorney.

(Code

Civ. Proc., § 2034.260, subd. (c).)

(a) A party who has been served with a demand to exchange information concerning expert trial witnesses may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(b) The court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. The protective order may include, but is not limited to, one or more of the following directions:

[...]

(6) That a party or a side reduce the list of employed or retained experts designated by that party or side under subdivision (b) of Section 2034.210.

(Code
Civ. Proc., § 2034.250.)

Plaintiff moves pursuant to Code of Civil Procedure section 2034.210, subdivision (b)(6) and requests that the Court deem Defendant's expert designation non-compliant, and bar or limit the experts Defendants can call at trial. Specifically, Plaintiff contends that the expert designation is devoid of information as to why two forensically retained liability experts are reasonable and necessary and not cumulative, seeks an order that Defendant can call either Dr. Kimberly Lee or Dr. Terry Dubrow, but not both, because the cost to depose both would be prohibitively expensive.

Indeed, the expert designations provide as follows:

Dr. Dubrow is a medical doctor specializing in plastic surgery and will testify as to standard of care, causation, and damages. His fee for deposition is \$2000/hour; his fee for review is \$650/hour.

Dr. Lee is a medical doctor specializing in Head and Neck surgery and will testify as to standard of care, causation, and damages. Her fees are as set forth in the attached Fee Schedule.

(Ex.

1 at Mayer Decl. ¶ 2.)

In opposition, Defendants argue that Plaintiff has not proven that the two experts are cumulative, because she has not yet taken their depositions. Further, Defendants cite to *People v. Carter* (1957) 48 Cal. 2d 737, 748-749, where the trial court erred in excluding the testimony of the physician who treated the defendant right after his suicide attempt, because even though the testimony was cumulative in terms of the content of the information, it was not cumulative in terms of its probative value to the jury.

Similarly, here, Defendants argue, having doctors in two separate specialties (plastic surgery and Head and Neck surgery) testifying that Defendants complied with the applicable standard of care will bring great weight to the jury.

However, Plaintiff, herself, intends to call two expert witnesses at trial. Thus, it would be inequitable for the Court to limit Defendants from similarly calling two expert witnesses.

Thus, the primary question is whether to limit Plaintiff's responsibility for the expert deposition fees.

Plaintiff has requested, as an alternative, that the Court cap Plaintiff's responsibility at \$750 per hour, with Defendants responsible for the balance.

Defendants argue this \$750 figure is arbitrary and inequitable, given that Dr. Dubrow charges \$2,000 per hour and Dr. Lee charges \$3,100 per hour for the first four hours, meaning \$750 per hour would not even cover half of either of their hourly rates. Further, Plaintiff's own retained expert, John M. Shamoun, M.D., charges \$4,000 per hour for the first hour and \$2,000 for each subsequent hour. Even further, Defendants point out that if the Court were to limit Defendants to one expert, Plaintiff would potentially be obligated to pay \$3,100 per hour.

The Court agrees with Defendants that, should it grant Plaintiff's primary request for relief, and should Defendants choose Dr. Lee, Plaintiff would be responsible for paying \$3,100 per hour, although Plaintiff would likely only bear the costs of half of the deposition hours.

Notwithstanding, although Plaintiff asserts in the motion that she cannot afford to depose both of Defendants' experts, she has not provided any declaration or other proof of her inability to afford to depose both experts, or the limits of that affordability.

CONCLUSION

AND ORDER

For the foregoing reasons, the Court denies Plaintiff's motion in its entirety.

Plaintiff shall provide notice of the Court's ruling and file the notice with proof of service forthwith.

DATED:

June 26, 2026 ____/s/_____

Michael E. Whitaker

Judge
of the Superior Court